(v) The Prime Minister can remove the Ministers of State as he/she chooses.

(vi) The Cabinet, in the exercise of the executive power, is collectively responsible to the Diet. It must resign when the House of Representatives passes a no-confidence resolution.

(vii) The Emperor can dissolve the House of Representatives on the advice of the Prime Minister.

An analysis of the above points makes it clear that Japan (though adopted the British Parliamentary pattern) differed from Britain in the following four respects:

1. In Britain, the Prime Minister is chosen as well as appointed by the King/Queen, while in Japan, the Prime Minister is chosen by the Diet but appointed by the Emperor.

2. In Britain, the Ministers are appointed by the King/Queen, while in Japan, the Ministers are appointed by the Prime Minister.

3. In Britain, the Prime Minister cannot remove the Ministers, while in Japan, the Prime Minister can remove the Ministers at his/her will.

4. In Britain, all the Ministers must be members of the Parliament, while in Japan, only a majority of the Ministers must be members of the Diet.

5. Constitutional Monarchy Japan is a monarchical state. It is described as a limited hereditary monarchy. The Constitution, though it preserves the institution of the Emperor, it deprives him/her of all powers, privileges and prerogatives he/she formerly exercised and enjoyed. It makes the following provisions with regard to the institution of the Emperor:

(i) The Emperor is the symbol of the state and of the unity of the people. He/she derives his/her position from the will of the people with whom resides sovereign power. Thus, the sovereignity of the Emperor is absolished.

(ii) The Imperial Throne is dynastic and succeeded to in accordance with the law passed by the Diet.

(iii) The advice and approval of the Cabinet is required for all acts of the Emperor.

(iv) The Emperor performs only those acts which are enumerated in the Constitution and he/she has no powers related to Government.

(v) The Emperor can neither give nor receive imperial property without the authorisation of the Diet.

Thus, the Constitution has made the Emperor merely a constitutional head. His/her authority is strictly limited to ceremonial functions of a constitutional monarch. Like his/her British counterpart, he/she only reigns and does not rule.

6. Supremacy of Constitution and Judicial Review The Japanese Constitution establishes the principle of supremacy of Constitution. The Constitution is regarded as the supreme (highest or fundamental) law of the land. The laws, ordinances, imperial rescript and official acts must conform to this supreme law. If these are against the provisions of the Constitution, they can be declared by the Supreme Court as ultra-vires and hence, null and void.